IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI
SPECIAL BENCH
COMPANY PETITION NO. (CAA) - 124 (PB)/2021
CONNECTED WITH C.A. (CAA)-78(PB)/ 2021

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with the Companies, (Compromises, Arrangements and Amalgamations) Rules, 2016

AND

IN THE MATTER OF COMPOSITE SCHEME OF ARRANGEMENT

BETWEEN

M/s. SKYLARK INDUSTRIES PRIVATE LIMITED

...Transferor Company/ Applicant-1

WITH

M/s. D PAL BUILDCON PRIVATE LIMITED

...Transferee Company/ Applicant-2

AND
THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced on: 23.02.2022

CORAM:

Dr. DEEPTI MUKESH
HON'BLE MEMBER (JUDICIAL)
SH. AVINASH K. SRIVASTAVA
HON'BLE MEMBER (TECHNICAL)

For the Petitioners: Mr. Ashish Middha, Advocate

MEMO OF PARTIES

M/s. SKYLARK INDUSTRIES PRIVATE LIMITED

12/5, Pal Mohan Apartments,

Punjabi Bagh West,

New Delhi- 110041

...Transferor Company

WITH

M/s. D PAL BUILDCON PRIVATE LIMITED

12/5, Pal Mohan Apartments,

Punjabi Bagh West,

New Delhi- 110041

...Transferee Company

ORDER

PER- AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)

1. This is a Second Motion Petition jointly filed by the Petitioner Companies which has come up before us for admission and for fixing a date of hearing of the Company Petition as well as for a direction in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to the date of hearing of the Petition and calling for the objections, if any, to the Composite Scheme of Amalgamation (hereinafter for brevity referred to as the "**Scheme**") as contemplated between the Petitioner Companies.

2. It is seen from the records that the First Motion Application seeking directions for convening / dispensing with the requirement of convening the meetings of Shareholders and Creditors of the Petitioner Companies was filed before this Tribunal vide Company Application No. CA(CAA)-78(PB)/2021. This Tribunal passed an order dated 18.11.2020 and was pleased to allow the First Motion petition and dispensed with the requirement of convening of the meetings of the secured creditors, unsecured creditors and equity shareholders of both the Applicant companies.

3. The Applicant(s) have filed the present Second Motion Petition, with a delay of seven days. For the condonation of delay an I.A.27/ 2022 has been preferred by the Applicants, which has been allowed vide order dated 10.02.2022.

4. Therefore, in the present Second Motion Petition filed under Sections 230 to 232 of the Act read with Rule 16 of the Rules, the prayer for fixing a date of hearing as well as for other consequential directions is allowed with the following directions: -

(i) *The next date of hearing of the Petition shall be on* ***24.03.2022*** *for the consideration of the approval of the*

Scheme of Amalgamation as contemplated between the Petitioner Companies.

(ii) *Notice of the hearing shall be advertised in the newspapers namely, "Business Standard" (English, Delhi edition) and "Business Standard" in Vernacular (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing.*

(iii) *In addition to the public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely,* ***(a) Central Government through Regional Director (Northern Region),*** *Ministry of Corporate Affairs;* ***(b) Registrar of Companies, NCT of Delhi & Haryana,*** *Ministry of Corporate Affairs;* ***(c) the Income Tax Department*** *through the Income Tax Cell at at DCIT (HC Cell), Lawyer's Chamber Block No. 1, Room No. 428 & 429 Delhi High Court, New Delhi; and* ***(d) Official Liquidator****; and to such other Sectoral Regulatory Authorities, if any applicable, who are likely*

to be affected by the Scheme, at least 30 days before the date fixed for hearing of the above Petition. The said authorities are directed to send their representations if any, within 30 days from the date of receipt of such notice as per the provisions of sub-section 5 of Section 230 of the Companies Act, 2013.

(iv) *Further, notices shall also be served to the Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Companies Act, 2013 who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.*

(v) *All the Petitioner companies shall, at least 7 days before the date of hearing of the Petition, file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above*

including the Sectoral Regulators, if any applicable, as well as to the Objectors, if any.

(vi) *Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may be filed on or before the date fixed for hearing, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.*

(vii) *The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Companies Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the required certificate of Company's auditor.*

(viii) *The petitioner companies shall file their respective up to date audited financial statements before the next date of hearing.*

Let a copy of the order be served to the parties.

-Sd-

(AVINASH K. SRIVASTAVA)
MEMBER (TECHNICAL)

-Sd-

(Dr. DEEPTI MUKESH)
MEMBER (JUDICIAL)